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Court

LAHORE HIGH COURT

Date

1947-12-22

Appeal No.

CRIMINAL REVISION NO. 1704 OF 1946

Judge

CORNELIUS, MUHAMMAD MUNIR AND MUHAMMAD JAN

Parties

TEJA SINGH (PETITIONER) VERSUS S. KISHEN SINGH (RESPONDENT)

Lawyers

MUHAMMAD FAZIL FOR PETITIONER. ABDUL KARIM FOR RESPONDENT.NEMO FOR THE CROWN.

Statutes

PENAL CODE (XLV OF 1860) - S. 211 CRIMINAL PROCEDURE CODE (V OF 1898)

Judgment

Abdul Rashid, J.—On the 4th of May 1945, Teja Singh petitioner presented an application in the Court of Mian Hakim-ud-Din, Magistrate 1st Class, stating that eleven persons, one 'of whom was Kishen Singh, were conspiring to murder him and that security may be demanded from these eleven persons under section 107 of the Criminal Procedure Code. After taking some evidence, the learned Magistrate dismissed the application of Teja Singh and refused to demand any security from Kishen Singh and others.

After the termination of the proceedings under section 107, Criminal Procedure Code, Kishen Singh presented an application suggesting that a complaint should be presented by the learned Magistrate against Teja Singh for the commission of an offence under section 211 of the Indian Penal Code. It was argued in the Magistrate's Court that proceedings under section 107 of the Code of Criminal Procedure were not criminal proceedings and that therefore no action could be taken against Teja Singh under section 211 of the Indian Penal Code. This argument was repelled by the learned Magistrate. Against this order a petition for revision was preferred in the Court of the learned Sessions Judge. This petition was summarily dismissed. Teja Singh has accordingly preferred a petition for revision to this Court.

The learned counsel for the petitioner quoted a number of rulings to the effect that proceedings under section 107 of the Code of Criminal Procedure could not be regarded as a 'criminal case'. He also contended that an application for action under section 107 of the Criminal Procedure Code could not be regarded as a 'complaint'. It was maintained by the learned counsel that in these circumstances no complaint under section 211 of the Indian Penal Code could be preferred against Teja Singh.

The main question for determination in this petition for revision is whether the words 'criminal proceedings' are synonymous with the words 'criminal case'. On this point, no authority has been quoted before me. It may be that the words 'criminal proceeding' as used in section 211 of the Indian Penal Code have a wider connotation than the words 'criminal case', or it may be that the words 'criminal proceeding' are synonymous with the words 'criminal case'. This is an important question which requires an authoritative pronouncement by a Division Bench. I accordingly refer this petition to a Division Bench for decision.

Order of the Division Bench S. A. Rahman, J.—The question that requires determination in this case is whether the proceedings under section 107, Criminal Procedure Code, are tantamount to a "criminal proceedings" within the meaning of section 211, Indian Penal Code. Teja Singh, the petitioner in the present case had instituted proceedings under section 107, Criminal Procedure Code against Kishen Singh, respondent, in the Court of a Magistrate 1st Class, Lahore. His petition was dismissed and Kishen Singh then moved the learned Magistrate under section 476, Criminal Procedure Code, praying that Teja Singh should be prosecuted under section 211, Indian Penal Code, for having instituted criminal proceedings against Kishen Singh with intent to cause injury to him. Objection was taken before the learned Magistrate on behalf of Teja Singh that section 211 was not attracted to the case as proceedings under section 107, Criminal Procedure Code, did not amount to the institution of any criminal proceedings. This contention was negated by the learned Magistrate and a revision petition presented to the learned Sessions Judge, Lahore, was also dismissed.

The petitioner then approached this Court on the revisional side. The case came up for hearing before Sir Abdul Rashid, J., (now the Hon'ble C. J.), but in view of the importance of the question involved, he referred the case to a Division Bench.

The expression 'criminal proceedings' is not defined anywhere in the Criminal Procedure Code or in the Indian Penal Code. Learned counsel for the petitioner has cited a number of rulings in support of his contention that proceedings under section 107 of the Code of Criminal Procedure cannot be regarded as 'criminal proceedings'. He argues that the very word 'criminal' connotes that the proceedings should relate to the commission of a "crime" and this ipso facto postulates the presence of an accused person.

Both these elements, the learned counsel maintains, are absent in the case of proceedings under section 107, Criminal Procedure Code. None of the rulings relied upon, however, provides any direct authority for the proposition contended for by the learned counsel.

In 78 P L R 1916, a Single Judge of the Punjab Chief Court held that proceedings under section 110, Criminal Procedure Code, did not constitute a "criminal case" within the meaning of section 526 clause (e) (ii) of the Code, as it then stood. It may be noted that this particular clause was amended in 1923 and the word 'criminal' appearing before the word 'case' in this clause, was omitted by the Legislature. It was observed by the learned Judge that a person proceeded against under section 110 of the Code was not an "accused person" as he was not accused of an offence. No final decision was, however, given by the learned Judge and he referred the case to a Division Bench. The question whether proceedings under section 110, Criminal Procedure Code, which may be regarded as on the same level as proceedings under section 107 of the Code, amounted to "criminal proceedings" or not, was not in issue in that case.

Another ruling quoted by the learned counsel, viz., 109 P L R 1904, is distinguishable on the facts. In that case there was only an application to the Deputy Commissioner against an employee of the Court of Wards and the application was not even made to a Criminal Court. The ruling reported as 42 Punjab Record 1905 (Criminal) was referred to in support of the proposition that a person proceeded against under section 107, Criminal Procedure Code, is not an "accused person". This view was approved of by a Full Bench of four Judges of the Punjab Chief Court in 153 PLR 1911. In A I R 1928 Lah, 694, it was held per Sir Shadi Lai, C. J.

that a petition presented under section 107, Criminal Procedure Code, cannot be regarded as a "complaint" within the meaning of clause (A) of subsection (1) of section 4 of the Code. These rulings do not really touch the point calling for decision in the present case.

The position in the other High Courts is somewhat conflicting. In I L R 41 Allahabad 503 (D. B.) a Division Bench of that Court characterised proceedings under section 107, Criminal Procedure Code, as "criminal" or at least "quasi criminal" in their nature.

The observation was, however, made in connection with an action for damages for malicious prosecution founded upon proceedings instituted under section 107, Criminal Procedure Code. That view was affirmed by the Allahabad High Court against in I L R 43 Allahabad 402. However, it was remarked in this ruling that it was not necessary to decide the nature of the proceedings under section 107, Criminal Procedure Code, though it was added that they were "undoubtedly criminal" in nature.

There are certain observations made by two Benches of the Madras High Court in I L R 27 Mad. 510 and I L R 39 Mad. 539 to the effect that proceedings under section 107, Criminal Procedure Code are proceedings in a criminal matter or cause and that they should be described as "criminal proceedings". The cases were, however, decided on a construction of section 15 of the Letters Patent of the Court.

In I L R 17 Calcutta 574 (1890), a Full Bench of that Court held that a person who sets the

criminal law in motion by making a false charge to the police, of a cognizable offence, institutes "criminal proceedings" within the meaning of section 211 of the Penal Code ; and if the offence fall within the description in the latter part of the section, he is liable to the punishment therein provided. There are observations at page 579 of the printed report in that case to the effect that proceedings to compel any one to give security by reason of an anticipated breach of the peace under section 107, are "apparently criminal proceedings", but they do not necessarily involve a charge of any offence. These observations, however, were no more than obiter dicta in that case.

In I L R (1914) 41 Cal. 719, it was laid down that proceedings under section 107, Criminal Procedure Code, constitute a "criminal case" within the meaning of section 526 of the Criminal Procedure Code as it then stood. A wide interpretation appears to have been given to the expression 'criminal case' in I L R 1928 Cal. 709, wherein it was observed that such a case need not have reference to some "offence" committed. An investigation in a case under section 145, Criminal Procedure Code, was held to be a "criminal case" within the meaning of section 526 of the Code, though some doubt was also expressed in this matter by one of the Judges composing that Bench. An incidental remark was also made that proceedings under section 107 of the Code would amount to a "criminal case." It is conceded by the learned counsel for the respondent that all proceedings taken under the provisions of the Criminal Procedure Code need not necessarily be "criminal proceedings". There is authority for this view. For instance in A I R 1925 Oudh 286, it was held that proceedings under section 145, Criminal Procedure Code, are of a quasi civil nature. None of the parties to such proceedings can be described as an accused person. The Bombay High Court in I L R 25 Bombay 179, expressed the opinion that such proceedings did not constitute a "criminal case" within the meaning of section 526 of the Code. A Division Bench of this Court in A I R 1929 Lah. 32. adopted the view that proceedings under section 488, Criminal Procedure Code, are strictly speaking not criminal proceedings and persons against whom action is taken under that section do not fall in the category of accused persons.

None of the authorities cited above appear to afford any direct assistance in the decision of the point involved in the present case. As has been pointed out in the referring order, the expression "criminal proceedings" may not be synonymous with the term "criminal case". It may be that the expression "criminal proceedings" should have a wider connotation than the latter term as far as section 211, Indian Penal Code is concerned. Proceedings under section 107 of the Code certainly lie in a Criminal Court. The person concerned may not be an accused person and he may not be charged with an offence. The object of proceedings under that section is undoubtedly, however, to prevent the commission of an offence. The Magistrate, who takes cognizance of these proceedings can also order the arrest of the persons concerned, either pending disposal of the proceedings or on their termination, if the order regarding security to be furnished is not complied with. Such detention, consequent on the failure to furnish security, however, can be put to an end to, by the voluntary act of the person concerned, viz., by compliance with the order requiring security. It is doubtful, therefore, if it can be held that there is power to inflict "punishment" under section 107, Criminal Procedure Code, "Punishment" seems to be a normal element in "criminal proceedings". Arrest and detention can even be ordered by a Civil Court in execution of decree and such an arrest can be terminated by the voluntary act of payment of the decretal amount, by the debtor. The position does not appear to me to be free from difficulty. The question involved in this case is an important one, which is liable to arise frequently in the Courts of this province. In my opinion, it is necessary that it should be settled authoritatively by a larger Bench. Subject to orders of the Honourable the Chief Justice, therefore, I would recommend that this case be referred to a Full Bench for decision.

Judgment Cornelius, J.—This reference to a full Bench has been made in the following circumstances. The petitioner Teja Singh laid an information against the respondent Kishan Singh and ten others in the Court of a Magistrate at Lahore praying that action be taken against

Kishan Singh as provided by section 107, Criminal Procedure Code. The Magistrate after issuing notice to the respondents, made some inquiry, and refusing to demand security from the respondents, dismissed the application. Thereupon, Kishan Singh applied to the Court praying that the Court should make a complaint against Teja Singh of an offence under section 211, Indian Penal Code. This section reads as follows : — "Whoever, with intent to cause injury to any person, institutes or causes to be instituted any criminal proceeding against that person, or falsely charges any person with having committed an offence, knowing that there is no just or lawful ground for such proceeding or charge against that person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both ; and if such criminal proceeding be instituted on a false charge of an offence punishable with death, transportation for life, or imprisonment for seven years or upwards, shall be punishable with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine".

The argument was raised on behalf of Teja Singh that proceedings under section 107, Criminal Procedure Code, were not criminal proceedings within the meaning of section 211, Indian Penal Code. The learned Magistrate rejected the argument and a revision petition taken before the Sessions Judge was summarily dismissed, whereupon Teja Singh preferred a petition for revision in this Court. The petition came up for hearing before a learned Single Judge who referred the case to a Division Bench, holding that an important question was involved, namely, whether the words "criminal proceeding" occurring in section 211, Indian Penal Code, have the same or a wider connotation than the words "criminal case". The case accordingly came up before a Division Bench, where authorities were cited on both sides and finding some conflict between the views of the various High Courts, and that there were forceful arguments both for and against the proposition that proceedings under section 107 were "criminal proceedings", the learned Judges of the Division Bench recommended that the case should be placed before a Full Bench.

2. It may be assumed for the purposes of this case, that nothing can be described as a proceeding unless it is a step in litigation or at least, an act in a Court, which is provided for in the procedure relating to that Court. In the general sense, procedure is the term used to express the action of Courts of Law. A more particular sense is rendered by the definition in Wharton's Law Lexicon viz. "the mode in which the successive steps in litigation are taken". This contemplates action by a party to the litigation, provided such action is a "step" in the litigation, i.e., is in accordance with some requirement of, or as performed under some power conferred by, the procedural provisions governing the litigation. The same conditions would apply to the acts of the Court ; in order to constitute a step in the litigation, such acts should be either enjoyed or enabled by the relevant procedural law. The course of litigation, consisting of acts of the parties and acts of the Court in successive steps constitutes the "proceeding", and a person who performs an act which sets in train such a series of acts might rightly be said to "institute" such a proceeding". Equally, such a person might be said to institute a "case", in the sense of an "action", or in other words, "a judicial proceeding for the enforcement of rights, the redress of wrongs or the punishment of offence". There does not appear to be any difference between this meaning of the word "case" and the sense placed above upon the word "proceeding", and this is the only meaning of these two expressions with which this Full Bench is concerned.

3. The controversy in the case centers round the question whether the expression "criminal proceeding" as used in section 211, Indian Penal Code, denotes a proceeding which relates to a matter which is "criminal" in its nature, or merely one which lies in a criminal Court, subject of course, to the condition mentioned above viz. that it should be in accordance with some requirement of, or be performed under some power conferred by, the provisions of the procedural law. The petitioner's case is that a "criminal proceeding" must relate specifically to a

crime ; a proceeding for the prevention of crime which is the object of the security provisions in Chapter VIII, Criminal Procedure Code, is not a "criminal proceeding" as it does not relate to any crime that has been committed. These provisions do not provide for the imposition of punishment directly upon the person against whom the proceeding is taken, but only for a demand of security ; punishment by way of imprisonment may only be imposed in default of furnishing security. Consequently, they cannot be described as "penal", and it is not possible to bring them within the category of "criminal proceedings" on this alternative basis. Learned counsel has cited certain authorities in support of his view. The first of these is an early decision of the Bombay High Court, *In re ; Pcmdurang Govind*, There the proceedings were under section 145, Criminal Procedure Code, and the question before the Court was whether such proceedings were liable to transfer under section 526, Criminal Procedure Code.

(1) I L R 25 Bom. 179 D. B.

The latter section, before its amendment in 1923 empowered the High Court to make orders of transfer in respect of particular criminal cases or appeals or classes of criminal cases or appeals, from one criminal Court to another. In holding that the High Court had no power to transfer the proceedings under section 145, Criminal Procedure Code, from one Magistrate to another, the learned Judges of the Division Bench relied on the following arguments, namely, firstly that a criminal case like a criminal appeal must deal with some crime already committed, secondly that action under section 145, Criminal Procedure Code, is ultimately not punitive but preventive, thirdly that action to be taken in the case was "quasi-executive" action, and fourthly that proceedings under section 145, Criminal Procedure Code, had been expressly excluded from the revisionary power of the High Court under section 435, Criminal Procedure Code. The last argument was also adopted by a learned Judicial Commissioner of Oudh, sitting singly in the case reported as "*Muhammad Ayub v. Sarfraz*" (2) in which a proceeding under section 145, Criminal Procedure Code, was described as "obviously of a 'quasi-civil' nature" and it was held that there was no bar to the administration of an oath to a party in such a proceeding as he could not be regarded as an "accused person". Section 435, Criminal Procedure Code, was amended in 1923 so as to include proceeding* under section 145, Criminal Procedure Code. The provisions of section 342, Criminal Procedure Code relate expressly to an "accused", and there is nothing in Chapter XII of the Code which might be construed to place the parties to the dispute to which the Magistrate's jurisdiction has been attached, in the position of a prosecutor or an accused. Consequently, the decision of the learned Judicial Commissioner would appear to conform to the statute, and speaking with great respect, it seems to me that it gained nothing in strength from the application of the description "quasi-civil" to proceedings under section 145 of the Code. In a similar way the decisions in "*Narain Dass v. Durga Devi*" (3) and "*Muhammad Khan v. The King Emperor*" (4) to the effect that a case under section 107, Criminal Procedure Code, in respect of a person does not fall under section 436, Criminal Procedure Code, since such a person is not an "accused person", were clearly in accordance with the statutory provisions. It is noticeable that wherever in Part B of Chapter VIII, Criminal Procedure Code, reference is made to the person from whom security for keeping the peace or for good behaviour is sought to be taken, the expression used is not "accused person" but merely "person" in respect of whom an order has been made or who has been required to show cause etc. Similarly the decision in "*Hari Singh v. Jagta*" (5) that a proceeding under section 107 is not a complaint for the purposes, of sections 202 and 203, Criminal Procedure Code, rests on the definition of "complaint" in section 4 of that Code which is confined expressly to allegations made regarding the commission of an offence. In "*Crown v. Ahmad Bakhsh*" (6) however which like the Bombay case arose out of an application for transfer under section 526, Criminal Procedure Code, but related to a proceeding under section 110 of that Code, a Division Bench of the Punjab Chief Court, expressed the view that such a proceeding did not amount to an enquiry into or trial of any offence, and that the person involved in the case is not an accused person, and concluded that "in no sense can the

case against such person be reasonably described as a criminal case". Since the judgments in this case and the Bombay case were pronounced, section 526 has been amended so as to empower the (2) AIR 1925 Oudh 286. (3) 1911 PLR 568 F B.

(4) 42 P R 1905 Cr. D B. (5) A I R 1928 Lah. 694.

(6) 5 P R 1914 Cr.

High Court to transfer any case pending in a Court subordinate to its authority. The opposite view had been maintained by some High Courts prior to this amendment, e.g., in "Wazed Ah Khan v. The Ktng Emperor" (7) it was held that a proceeding under section 107, Criminal Procedure Code, was a "criminal case" for the purposes of section 526, as it then stood. Apparently, the latter view was more in consonance with the intention of the Legislature, as shown by the eventual amendment of section 526.

4. The view expressed in the Bombay case that a "criminal case must deal with some crime already committed, is directly opposed to that of a learned Chief Justice of the Madras High Court, Subrahmaniya Ayyar, C. J. expressed in a case published as "In the matter of Ramasamy Chetty" That was a case in which an appeal was sought to be instituted against an order of a single Judge of the Madras High Court, rejecting a petition for revision of an order of a District Magistrate, confirming a Magistrate's order demanding security from a person under section 107, Criminal Procedure Code. The provisions of Article 15 of the Letters Patent were invoked, which excluded orders of a Single Judge made in matters arising out of 'criminal trials', and the argument was raised that a proceeding under section 107, Criminal Procedure Code was not a "criminal trial". In discussing the nature of such a proceeding, the learned Chief Justice observed as under :— "The very object of the proceeding is the provisions of certain crimes about to be committed with reference to the public peace and it is the likelihood of a disturbance of public tranquility that gives the Court jurisdiction. It is obvious that proceedings of this character held before Criminal Courts can be nothing but criminal proceedings".

The decision came up for examination in a later Madras case before a Division Bench published as "In re : Desikachn" (9) and it was held that Ramasamy Chetty's case was rightly decided, and that "there was no doubt that proceeding under Chapter VIII are criminal cases".

The circumstance that these decisions were given with reference to provisions contained in the Letters Patent of the Madras High Court, cannot, in my opinion, affect the argument, in view of the radical nature of the present enquiry. It clear enough that the jurisdiction of Civil Courts is not confined to the redress of wrongs after they have been committed ; such Courts may grant relief by declaration or injunction in advance of and for preventing the commission of any such wrongs, and there seems no foundation in reason for the assumption that when a Criminal Court acts in accordance with statutory provisions, to prevent the commission of a crime, it acts otherwise than in the exercise of its jurisdiction as a Criminal Court, or that the action taken is to be regarded as not falling under criminal law, merely because although in the broad sense it relates to a crime, it does not relate to any crime already committed. This view finds further support from the decision of the Calcutta High Court in "Wazed Ali Khan v. King Emperor" where the learned Judges of a Division Bench expressed the view that action taken by a Court in advance of the commission of a crime may fall within the meaning of the expression "criminal case".

5. The argument that because certain action provided for in the Criminal Procedure Code is preventive and not punitive, it cannot described as action in a "criminal case" has also been controverted in the Calcutta case just cited, where the learned Judges of the Division Bench in holding that a case under section 107, Criminal Procedure Code, was a "criminal case" adverted

to the powers possessed by Magistrates acting (7) I L R 41 Cal. 719. (8) I L R 27 Mad. 510.

(91 I L R 39 Mad. 539.

under Chapter VIII of the Code to detain a person in custody until the completion of the enquiry, and to sentence such person to imprisonment for failure to furnish security. This view was adopted by the Madras High Court in the case. In *re Desikachari* (9) where the learned Judges of the Division Bench also pointed out, in holding that imprisonment for failure to furnish security was a kind of punishment, that in section 423, while prohibiting enhancement of a sentence by the Appellate Court, the Code expressly saves the provisions of section 106, which empowers such a Court to require a convicted person to furnish a bond for keeping the peace after his release. By section 123, it is provided that in default of furnishing security, the convict may be detained in prison, undergoing simple imprisonment until the period of the bond expires, or he furnishes the required security. By implication such an order by an Appellate Court, if not expressly saved would be barred by the provisions of section 423, as constituting an enhancement of sentence. These views being founded on good reason, are entitled to the greatest respect. It is plain that, with all respect to the learned Judges of the Bombay High Court, it is not possible to exclude cases falling under section 107, Criminal Procedure Code, from the category of "criminal cases" on the ground that such cases do not involve the infliction of any punishment or penalty.

6. There is also judicial authority for the view that a proceeding in a case falling under section 107, Criminal Procedure Code, is in fact a trial. In *Venkatachinnaya v. The King Emperor* (10) the question before the Full Bench of the Madras High Court was whether such a proceeding was an enquiry or trial for the purpose of section 350 of the Code, which provides inter alia for the common contingency of a change of Magistrate during the pendency of an enquiry or trial. Wali's, C. J. observed that in such a proceeding "an issue undoubtedly arises between the Crown and the accused as to whether he should be dealt with under the sections" and pointing out that, although it was usual to speak of the trial of persons, what was really tried in civil and criminal cases are issues, he held that the determination of the issue which arose in such a proceeding must be regarded as a trial. Subramania Ayyar, C. J. also in the case. "In the matter of *Ramasamy Chetty*" (8) opined that an investigation by a Magistrate of a matter falling under section 107 was "clearly a trial". The Code provides that the procedure to be followed in such a case is that applicable to summons cases, which allows full opportunity to the person from whom security is sought to put forward his pleas, to cross-examine the witnesses examined by the prosecution, and to lead evidence in rebuttal. I am in respectful agreement with the views of the two learned Chief Justice of the Madras High Court, and I am of the opinion that although the statement in the case *Crown v. Ahmad Bakhsh* (6) that such proceedings do not amount "to an enquiry into or trial of any offence" is undoubtedly correct, it cannot be understood to mean that such a proceeding is not in essential respects a trial.

7. Reference should also be made to a Full Bench decision by five Judges of the Calcutta High Court in the case *Karam Bakhsh v.*

The Emperor (11) relating to the interpretation of section 211, Indian Penal Code. That section divides into two parts the first of which provides a specific punishment for a person who with certain intent or knowledge "institutes or causes to be instituted any criminal proceedings against (another) person or falsely charges any person with having committed an offence" ; the second part provides an enhanced punishment "if such criminal proceeding be instituted on a false charge" of certain heinous (10) I L R 43 Mad. 511 F B. (11) I L R 17 Cal. 574, offences. The argument was raised that report to the police of an offence falling within the latter part of the second was not contemplated by the section, since such a report would amount to a false charge

and while the first part of the second expressly mentioned false charging, the second part mentioned only institutions of criminal proceeding which must be held to refer to complaints. The argument was repelled by Wilson, J, delivering the judgment of the Full Bench, who considered that the two phrases namely "institutes criminal proceedings" and "falsely charges" could not be supposed to have been used by the Legislature as being mutually exclusive of each other since every institution of criminal proceedings involves the making of a charge. In considering certain classes of cases by way of example the learned Judge observed as follows "Thus proceedings to compel any one to give security by reason of an anticipated breach of the peace under section 107.....

are apparently criminal proceedings, but they do not necessarily involve a charge of any offence".

Although this was said obiter, the dictum coming from so strong a Bench and occurring in a considered examination of the interpretation to be put upon section 211, Indian Penal Code, must be held to have great value for the present purposes.

8. A survey of the authorities shows that on the few occasions when the question came directly under examination, the Courts were clearly of the opinion that a proceeding in a case falling under section 107, Criminal Procedure Code, was a "criminal proceeding". The grounds on which such a proceeding was held not to be a "criminal case" for the purpose of the unamended section 526, Criminal Procedure Code, in *Crown v. Ahmad Bakhsh* (6) do not appear, speaking with great respect, to be well founded, and the characteristics of a "criminal case" as enumerated in *Pandorang Govind's case* (1) seem in the light of the opinions repeatedly expressed by the Madras High Court and approved by the Calcutta High Court in the case *Wazed Ali Khan v.*

The King Emperor (7) to be too narrowly stated. The attempt to distinguish between a civil and a criminal injury on any basis except the particular Court in which such injury may be pursued is one that must necessarily fail. For, to say that a civil injury is a private wrong while a criminal injury is a public wrong overlooks the fact that almost every crime involves violation of a duty towards a determinate person or persons. Nor can an absolute distinction be drawn by reference to the sanctions respectively applying. For though as a general rule, a civil sanction is confined to redress, enforceable at the discretion of the injured party, there can be no doubt that such enforcement has an effect in *terrorem*, inasmuch as it operates to prevent the further commission of similar injuries by the same person or other persons. On the other hand, while the sanction applicable to criminal wrongs, namely, punishment has as its main object, the prevention of further injuries by the same person or other persons, yet there is power also to provide for redress to the injured party by way of compensation or restitution. The uncertainty and difficulty of drawing a distinction between civil wrongs and crimes led the great writer on Jurisprudence, Austin, to conclude that "the difference between Crimes and Civil Injuries is not to be sought for in a supposed difference between their tendencies, but in the difference between the modes wherein they are respectively pursued"; and he further opined that the difference consisted in "the different tendencies of Civil or Criminal Procedure as applied in certain cases".

But Austin laid the difference on a basis which is not valid in relation to Indian Law and which he expressed as under :— ' An offence which is pursued at the discretion of the injured party or representative is a Civil Injury. An offence which is pursued by the Sovereign or by the subordinates of the Sovereign, is a Crime".

(Lectures on Jurisprudence, 5th Edition, Volume I, page 405).

The Criminal Procedure Code provides, in respect of a number of crimes of varying importance,

that they may only be pursued by specified persons who have suffered injury. The only true basis of distinction appears to be the form where the injury may be pursued, and this has been stated with clarity by Markby in the following passage :— ‘ Liability is not unfrequently divided into civil and criminal liability. This classification is not based upon any distinction in the nature of the two kinds of liability, but upon the difference in the tribunal in which the party liable is proceeded against. If the Court where the party is proceeded against be what is called a Criminal Court or Court of Criminal jurisdiction, the liability is considered to be criminal, and the breach of duty is called a crime or an offence. If the Court in which the proceedings are taken be a Civil Court, or Court of civil jurisdiction, the liability is considered to be civil, and the breach of duty is called a civil injury’.

(Elements of Law, 1885) 9. If this be true in relation to injuries, which may exist irrespective of the presence or otherwise of a Court in which they may be pursued, it must necessarily be of equal truth in relation to proceedings, which can only be taken in a Court, and it must follow that the feature of a criminal proceeding, which distinguishes it from a civil proceeding, is that it lies in a Criminal Court under the adjective law, while a civil proceeding lies in a Civil Court. Thus both preponderance of authority and the argument a priori lead to the conclusion that the second of the possible alternative meanings of the expression “criminal proceeding” is the true meaning, i.e., a proceeding which lies under the law of procedure in a Criminal Court and which is in accordance with some requirement of or is performed under some power conferred by the relevant procedural provisions. From the point of view of the interpretation of a penal provision like section 211, Indian Penal Code, this meaning possesses the great advantage over the other alternative, that it enables the law to be applied with complete certainty.

10. It remains to consider whether in the circumstances of the present case, a criminal proceeding had been instituted, and if so, by whom. Section 107, empowers a Magistrate to require any person to show cause why he should not be required to furnish security upon being satisfied that a breach of the peace by such person is to be apprehended. The receipt of information, and the verification of such information are not provided for in the section, and relying upon the definition accepted above, it must be held that the mere making of a complaint, whether orally or in writing, against such a person, and any steps which the Magistrate may take to verify the truth of the allegations before he issues notice to the opponent are not within the expression “criminal proceeding”. But the issue of such a notice by the Magistrate, being the 1st positive act which is provided for by the procedural law, and all the subsequent steps for which provision is made in sections 112 to 119 are clearly within the definition.

It may be asked in a case which starts with a complaint are these “proceedings” instituted by the person making the complaint, or in view of the fact that the first of them is an action of the Magistrate based on his own judgment, is it not more correct to say that they are instituted by the Magistrate ? In my view, the answer must be that the responsibility for the “institution” of the proceeding must be taken by the person who first conveys the information to the Magistrate, and, by implication, undertakes to satisfy him that the case is a proper one for the exercise of his jurisdiction. “No man can be heard to say that he lodged a false complaint maliciously, without any justification in the belief that, though supported by his own oath, the Magistrate would have no difficulty in detecting its falsity, and in dismissing it without calling upon the accused”. Per Sir John Beaumont in *Muhammad Amin v. CJOJINDRA Kumar* (12). That was said in relation to a complaint falling under section 200, Criminal Procedure Code, but in essential respects, it is equally true in the circumstances here present, and I would, therefore, unhesitatingly hold that a person who moves a Magistrate to take action against another falling under section 107 of the Code is the person who “institutes” the “proceeding”, commencing with the issue of notice to such other person by the Magistrate should such a notice be issued.

Where, however, the Magistrate refuses to make such a demand, there is no "criminal proceeding", and if the complaint be false and malicious, the sanction in law would be provided, not by section 211, Indian Penal Code, but by section 182, Indian Penal Code, which penalises the malicious laying of false information with a public servant, designed to mislead the latter or to cause him to use his power to the detriment of another person. It should be added, by way of caution, that in the present context, the word "complaint" is not used in the technical sense of the Criminal Procedure Code.

11. The result is that the petitioner in this case must be held to have instituted a "criminal proceeding", inasmuch as, acting upon information laid by him, the Magistrate called upon the opponent Kishan Singh to show cause why he should not be required to furnish security for keeping the peace, and took consequential proceedings. I would, therefore, dismiss the petition.

Muhammad Munir, J.—I agree.

Muhammad Jan, J.—The point involved in this case is whether the institution of proceedings under section 107, Criminal Procedure Code, with intent to cause injury to the person proceeded against, knowing that there is no just or lawful ground for such proceedings, is an offence under section 211, Indian Penal Code, or not.

It is conceded by the learned Counsel for the petitioner that if such proceedings are "criminal proceedings" mentioned in section 211, Indian Penal Code, then the provisions of that section will apply ; but he contends that security proceedings are not criminal because (a) the Court does not take cognizance of such proceedings under section 190, Criminal Procedure Code and (h) the person proceeded against is not an accused person. Proceedings, according to the learned Counsel, can be described as "criminal" only if they are initiated in one of the three manners prescribed by section 190, Criminal Procedure Code and when the person proceeded against can be held to be an accused person. Section 190, Criminal Procedure Code lays down that :— "A Magistrate may take cognizance of any offence :— (a) upon receiving a complaint of facts which constitute such offence ; (12) A 1 R 1947 P C 108.

(b) upon a report in writing of such facts made by any Police Officer ; and (c) upon information received from any person other than a Police Officer or upon his own knowledge or suspicion, that such offence has been committed." As security proceedings are intended to prevent the commission of an offence, not to punish an offence already committed, it is clear that section 190, Criminal Procedure Code, does not cover a petition under section 107. Such a petition cannot be described as a "complaint" which is defined by section 4, clause as meaning "the allegation made orally or in writing to a Magistrate, with a view to his taking action under this Code, that some person, whether known or unknown, has committed an offence****".

There is, however, nothing to warrant the contention that in all criminal proceedings there must be a complaint, i.e., an allegation of an offence having been committed by some known or unknown person. If false and malicious allegations are made against any one that he has either committed an offence or that he is about to commit an offence, the maker of the allegations, is in my opinion, punishable under section 211, Indian Penal Code, which says that "whoever, with intent to cause injury to any person, institutes or causes to be instituted any criminal proceeding against that person, or falsely charges any person with having committed an offence shall be punishable etc." It is clear from the wording of this section that it is intended to apply to cases where no charge of any offence having been committed is made as well as to cases where such a charge is made.

It is contended, on behalf of the petitioner, that in criminal proceedings there must be the

possibility of punishment and no punishment can be inflicted in security proceedings. The detention of a person pending the disposal of proceedings under section 107, Criminal Procedure Code, and the imprisonment consequent on the failure of the person proceeded against to furnish security are, according to the learned counsel, no punishment. It is difficult to accept this contention or to understand what else can such imprisonment be if not punishment. It is urged that imprisonment in default of furnishing security is a punishment for the disobedience of the order of the Court to furnish security and not punishment for an offence. This, to my mind, makes no difference at all. Imprisonment in default of furnishing security is punishment just as much as imprisonment in default of payment of fine.

The words "criminal proceeding" in section 211, Indian Penal Code, should be given their ordinary meaning. In the Oxford English Dictionary the words "criminal" is stated to mean "relating to crime or its punishment". It is not confined only to the punishment of crime but can relate to its prevention also. I am of the opinion, that proceedings under Chapter VIII of the Criminal Procedure Code are covered by section 211, Indian Penal Code.

With these remarks, I respectfully agree with the opinion expressed by my learned brother, Cornelius, J.

A.H. Petition dismissed.

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